

HOUSE No. 4200

The Commonwealth of Massachusetts

PRESENTED BY:

James J. O'Day

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing a pilot for the use of psychedelics in licensed treatment facilities.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>James J. O'Day</i>	<i>14th Worcester</i>	<i>3/17/2025</i>
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>2/11/2026</i>

HOUSE No. 4200

By Representative O'Day of West Boylston, a petition (subject to Joint Rule 12) of James J. O'Day for legislation to authorize a pilot program for the use of psychedelics in certain licensed treatment facilities. Mental Health, Substance Use and Recovery.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing a pilot for the use of psychedelics in licensed treatment facilities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Notwithstanding any general or special law to the contrary, the department of public
2 health shall establish a pilot program to allow for the monitored mental health care of clinically
3 appropriate patients using psychedelic materials as defined by the department of public health for
4 on-site administration by a multi-disciplinary care team in a supervised licensed mental health
5 clinic setting. The department shall issue pilot permits to no more than three licensed mental
6 health clinic facilities to participate in the pilot program for the purposes of establishing the best
7 and safest clinical practices for psychedelic mental health treatment programs in the
8 commonwealth and for the purposes of collecting patient outcomes data regarding the benefits of
9 psychedelic pharmacotherapy. Authorization shall be given to clinics licensed in mental health
10 services as defined by the department of public health. Eligible pilot program organizations must
11 exclusively focus operations and treatment on mental health and cannot be subsidiaries, affiliates
12 or members of cannabis industry organizations, psychedelic molecule development companies or
13 pharmaceutical companies.

14 The department shall promulgate the rules and regulations necessary for the operation of
15 a supervised psychedelic pilot in a clinical setting, including but not limited to, establishing a
16 process to apply for participation in the pilot. The regulations must include but not be limited to:
17 the definitions and standards for clinic participation; the process of initial patient assessment and
18 ongoing monitoring; the composition of the clinical staff and the role of a licensed physician to
19 oversee the program; the process of ensuring coordination and medical management of
20 psychiatric medications with prescribers outside of the participating outpatient clinical pilot; and,
21 the process of storage, dispensing and administration of psychedelics within the participating
22 pilot.

23 All pilot program participant organizations must track patient care outcomes data related
24 to the identification, diagnosis and psychedelic treatment of depression, anxiety, post-traumatic
25 stress disorder and substance use disorder. These data sets must be shared with the department to
26 assist in the refinement of best clinical protocols and final regulatory frameworks for the safe use
27 of psychedelic material in Massachusetts.